

The M.P. State Veterinary Council Rules, 1993

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State of Madhya Pradesh - Act

The M.P. State Veterinary Council Rules, 1993

MADHYA PRADESH

India

The M.P. State Veterinary Council Rules, 1993

Rule THE-M-P-STATE-VETERINARY-COUNCIL-RULES-1993 of 1993

Published on 4 August 1994

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The M.P. State Veterinary Council Rules, 1993

Published vide Notification No. F-10-1-35-92, dated 4-8-1994, M.P. Rajpatra (Asadharan), dated 25-11-1994 at pages 1868-1868 (21)

In exercise of the powers conferred by Section 65 read with Sections 36, 38, 40, 41, 42, 44, 45, 46, 47, 48, 50, 51, 52 and 54 of the Indian Veterinary Council Act, 1984 (No. 52 of 1984) the State Government (of Madhya Pradesh) hereby makes the following rules, namely :-

Part I ? Preliminary

1.

Short title.

- These rules may be called the Madhya Pradesh State Veterinary Council Rules, 1993.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Indian Veterinary Council Act, 1984 (No. 52 of 1984);

(b)

Election or re-election means election or re-election to the State Veterinary Council;

(c)

"Form" means a form appended to these Rules;

(d)

"Nomination" or "Re-nomination" means nomination or re-nomination to the State Veterinary Council.

(e)

"Registrar" means Registrar of the State Council;

(f)

"State Council" means the Madhya Pradesh State Veterinary Council established under Section 32 of the Act;

(g)

"Section" means a Section of the Act.

(h)

"Tribunal" means Registration Tribunal established under Section 45 of the Act.

(2)

Words and expressions used in these rules and not separately defined above shall have the same meaning as in the Act.

Part II ? Election to the State Council

3.

Notification for election.

(1)

For purposes of electing the members of the State Council under clause (a) of sub-section (1) of Section 32, the State Government of Madhya Pradesh shall by a notification published in its official Gazette, call upon the persons enrolled in the Madhya Pradesh State Veterinary Register maintained under Chapter VII of the Act, (hereinafter referred to as the register) to elect the said member, in accordance with the provisions of these rules.

(2)

Preparation of the roll. - (a) As soon as may be after the notification under Rule 3 (1) is issued, the Registrar shall prepare the roll which shall contain the name of every person whose name is entered in the register.

(b)

The names of the electors shall be arranged in the order in which they are entered in the register.

(3)

Publication of the roll in draft. - The Registrar shall publish the roll prepared under Rule 3 (2) in draft by making a copy thereof available for inspection and by displaying it in the office of the State Council.

(4)

Period for lodging claims and objections. - Every claim for inclusion of a name in the roll and every objection to any entry therein shall be lodged within a period of thirty days from the date of publication of the roll in draft under Rule 3 (3) in Forms I and II respectively.

(5)

Forms of claims and objections and the manner of their disposals. - (a) Every claim shall be in the Form I and signed by the person desiring his name to be included in the roll.

(b)

Every objection in Form II to the inclusion of a name in the roll shall be preferred by a person whose name is already included in the roll and shall be countersigned by another person whose name is also included in that roll.

(c)

Every such claim or objection, as the case may be, shall be examined by the Registrar who shall record his remarks, thereon, following which he may either allow or reject the claim or objection :

Provided that claim or objection shall not be rejected unless the person making it is given an opportunity of making representation against such rejection.

(d)

The decision of the Registrar allowing or rejecting a claim or objection shall be final.

(6)

Final Publication of the Roll. - (a) The Registrar shall, after disposing of the claims and objections, if any, under Rule 3 (5) prepare a list of amendments to correct his decision under the said rule and to carry out any clerical or printing error and other inaccuracies in the roll subsequently discovered or brought to his notice.

(b)

The Registrar shall publish the roll together with the list of amendments by making a complete copy thereof available for inspection by and displaying it at the office of the State Council.

(c)

On such publication, the roll together with the list of amendments shall be the electoral roll of persons who may elect the members of the State Council under Clause (a) of sub-section (1) of Section 32 of the Act.

(d)

A copy of the roll together with the list of amendments published under sub-rule (b) shall be sent by the Registrar to the State Government

(7)

Returning Officers and Assistant Returning Officers. - (a) State Government shall, after receipt of a copy of the electoral roll published under Rule 3 (6) designate or nominate a Returning Officer who shall be any officer of the State Government.

(b)

The State Government may also appoint one or more persons, who shall also be officers of the State Government, to assist the Returning Officer in the performance of his functions as Assistant Returning Officers.

(c)

Every Assistant Returning Officer shall be subject to the control of the Returning Officer, be competent to perform all or any of the functions of the Returning Officer :

Provided that no Assistant Returning Officer shall perform any of the functions of the Returning Officer which relate to the issue of voting papers, counting of voting papers, and declarations of results of election.

(8)

Appointment of date for Nomination etc. - (a) The Returning Officer shall by notification in the Official Gazette of Madhya Pradesh, or in such other manner deemed fit, appoint,-

(i)

the date for making nominations which shall be the 7th day after the date of publication of the said notification or, if that day is a public holiday, the next succeeding day which is not a public holiday;

(ii)

the last date for withdrawal of candidatures which shall be the second day after the date of Scrutiny of nominations or, if that day is a public holiday the next succeeding day which is not a public holiday;

(iii)

the date on which a poll shall, if necessary, be taken which shall be a date of not earlier than the 30th day after the last date for withdrawal of candidature; and

(iv)

the date, the time and the place for counting of votes and for declaration of results which shall not be beyond the 3rd day from the date of poll.

(b)

The notification, issued under clause (a) above shall also invite nomination of candidates for election to the State Council and specify the place at which the nomination papers are to be delivered.

(9)

Presentation of nomination paper and requirements for valid nominations. (a) On or before the date appointed under sub-clause (i) of Clause (a) of Rule 3 (8) each candidate shall send by registered post with acknowledgement due or deliver in person to the Returning Officer a nomination paper in Form III.

(b)

Every nomination paper shall be subscribed by two electors- one as the proposer and the other as the seconder and assented by the candidate proposed and seconded by them :

Provided that no elector shall subscribe as proposer or seconder more nomination papers than there are seats to be filled up :

Provided further that, if an elector subscribes to more number of nomination papers than there are seats to be filled up, the nomination papers first received by the Returning Officer equal to the number of seats to be filled up shall, if they are otherwise in order, be held to be valid, and if all such nomination papers subscribed by the same elector in excess of the number of seats to be filled up are received, simultaneously, all such nomination papers shall be held to be invalid.

(c)

On receipt of each nomination paper, the Returning Officer shall endorse thereon the date and the hour of its receipt.

(10)

Rejection of nomination papers. - A nomination paper which is not received on or before the date appointed by the Returning Officer in that behalf shall be rejected.

(11)

Scrutiny of nomination papers. - (a) on the date and the time appointed by the Returning Officer for scrutiny of the nomination papers, the candidates and the proposer and the seconder of each candidate or other representatives duly authorised by the candidates in this behalf may attend the office of the Returning Officer who shall allow them to examine the nomination papers of all the candidates which have been received by him as aforesaid

(b)

The Returning Officer shall examine the nomination papers thus received and decide all questions which may arise as to validity of any nomination and his decision thereon shall be final.

(12)

Withdrawal of candidature. - (a) Any candidate may withdraw his candidature by notice in writing signed by him and delivered to the Returning Officer before the date fixed under sub-clause (iii) of clause (a) of Rule 3 (8).

(b)

A candidate who has withdrawn his candidature shall not be allowed to cancel the withdrawal or to be renominated as a candidate for the same election.

(13)

Publication of the list of contesting candidates. - (a) Immediately after the expiry of the period within which candidatures may be withdrawn under Rule 3 (12), the Returning Officer shall prepare and publish a list of contesting candidates that is to say, candidates who were validly nominated and who have not withdrawn their candidatures within the said period.

(b)

The said list shall contain the names (in alphabetical order) and the addresses of the contesting candidates as given in the nomination papers.

(c)

The said list shall be published in the Officer Gazette of Madhya Pradesh and be given wide publicity in such manner as the Returning Officer may deem fit.

(14)

The Poll. (a) If the number of duly nominated candidates for election does not exceed the number of members to be elected, the Returning Officer shall forthwith declare such candidates to be duly elected.

(b)

If the number of such candidates exceeds the number of members to be so elected, the Returning Officer shall, not later than 30 days before the date appointed for the poll send by airmail to every elector residing or practising abroad and by post to every other elector within the State or outside it but within the country, a letter of intimation in Form VI together with a numbered declaration paper in Form V, a voting paper in Form IV, containing the names of the candidates in alphabetical order and bearing the Returning Officer's initials or facsimile signature, a voting paper cover addressed to the Returning Officer and an outer cover also addressed to the said officer :

Provided that the voting paper and other connected papers may also be sent to any elector on his applying to the Returning Officer for the same before the date appointed for the poll, if the Returning Officer is satisfied that the papers have not been sent to him.

(c)

A certificate of posting shall be obtained in respect of each and such letter of intimation sent to an elector.

(d)

An elector who has not received the voting and other connected papers sent to him by the post or who has lost them or in whose case the papers before their return to the Returning Officer have been inadvertently spoilt, may transmit a declaration in writing to that effect and request the Returning Officer not later than 15 days before the date appointed for the poll to send him fresh papers and if the papers have been spoilt papers shall be returned to the Returning Officer who shall cancel them on receipt.

(e)

In every case in which such fresh papers have been issued, a mark shall be placed against the number relating to the elector's name in the electoral roll to denote that fresh papers have been issued to him.

(f)

No election shall be invalid by reason of non-receipt by an elector of his voting paper and other connected papers.

(g)

Each elector shall have the right to vote for as many candidates as there are seats to be filled by the election and the vote shall be non-transferable.

(h)

Every elector desirous of recording his vote shall after filling up the declaration paper (Form V) and the voting paper (Form IV) according to the directions given in the letter of intimation (Form VI) enclose the voting paper in the voting paper cover stick up and enclose the said cover alongwith the declaration paper in the outer envelope addressed to the Returning Officer, and send that other envelope by post at the elector's own cost or by hand to the Returning Officer, so as to reach him not later than the appointed time for closure of voting on the date fixed for the poll.

(i)

On receipt by post or by hand, of the envelope containing the declaration paper and the closed cover containing the voting paper, the Returning Officer shall endorse on the outer envelope the date and the hour of its receipt.

(j)

All envelopes received after the said day and hour shall be rejected.

(15)

Opening of the cover. - (a) The Returning Officer shall open the outer envelope immediately after the appointed time for closure of voting on the date fixed for the poll at the place to which the envelopes are addressed to him.

(b)

Any candidate may be present in person or may send a representative duly authorised by him in writing to be present at the time when the outer envelopes are opened.

(16)

Rejection of voting paper covers. - (a) A voting paper shall be rejected by the Returning Officer, -

(i)

the outer envelope containing no declaration paper outside the voting paper cover; or

(ii)

the declaration paper is not the one sent by the Returning Officer;

(iii)

the declaration paper is not signed by the elector; or

(iv)

the voting paper is placed outside the voting paper cover; or

(v)

more than one declaration paper or voting paper cover have been enclosed in one and the same outer envelope.

(b)

In each case of rejection, the word 'rejected' shall be endorsed on the paper cover and the declaration paper. The reasons for the rejection shall also be recorded, in the brief, on the voting paper cover.

(c)

After satisfying himself that the elector have affixed the signature to the declaration papers, the Returning Officer shall keep all the declaration papers in safe custody pending disposal under Rule 3 (19).

(17)

Scrutiny and counting of votes. - (a) On the date appointed for the counting of votes, the voting papers covers other than those rejected under Rule 3 (16) shall be opened and the voting papers taken out and mixed together.

(b)

The voting papers shall then be scrutinised and the valid votes counted.

(c)

Any candidate may be present in person or may send a representative duly authorised by him, in writing to watch the process of counting.

(d)

A voting paper shall be invalid if-

(i)

it does not bear the Returning Officer's initials or facsimile signature; or

(ii)

a voter signs his name on the voting paper or writes any word on it, or make a mark on it by which it becomes recognisable as his voting paper, or

(iii)

no vote is recorded thereon, or

(iv)

it is void for uncertainty of the vote recorded; or

(v)

the number of votes recoded thereon exceeds on the number to be elected; or

(vi)

the recording of the vote has been done at a place other than provided for the purpose.

(e)

The Returning Officer shall show the voting papers to the candidates or their authorised representatives at the time of scrutiny and counting of votes, if so requested.

(f)

If any candidate or his representative makes an objection to acceptance of a voting paper on the ground that it does not comply with the specified requirements, or to the rejection of a voting paper by the Returning Officer, it shall be decided at once by the Returning Officer whose decision thereon shall be final.

(g)

The Returning Officer shall nominated such number of scrutinisers as he deems fit in accordance with such directions as may be issued in this behalf by the State Government.

(18)

Declaration of results. - (a) When the counting of votes has been completed, the Returning Officer shall draw up a list of candidates in the order of highest votes polled by each and shall declare the result of the successful candidates in that order according to the number of seats to be filled up.

(b)

If any candidate thus declared elected refuses to accept the election, then in the place of that candidate one of the remaining candidates to whom the next largest number of votes have been cast shall be deemed to have been elected, and the same procedure shall be adopted by as after as a vacancy is caused in this way.

(c)

When there is equality of votes among any two or more candidates than the person or persons, as the case may be, who shall be deemed to have been elected shall be determined by lots to be drawn by the Returning Officer or any other officer authorised by him in such manner as he may determine.

(d)

The Returning Officer shall, as soon as the result is declared inform each successful candidate of his being elected to the State Council.

(19)

Voting papers to be retained. - Upon the completion of the counting and after the result has been declared, the Returning Officer shall seal the voting papers and all other documents relating to the election and shall retain the same

for a period of six months, and shall not destroy or cause to be destroyed these records even after the expiry of the said six months with the previous concurrence of the State Government.

(20)

Intimation of results of election. (a) The Returning Officer shall intimate the names of the elected candidates to the State Government (for enabling it to fulfil its statutory' obligation of publishing their names in the official Gazette of Madhya Pradesh under sub-section (2) of Section 32 of the Act).

(b)

In case of any dispute regarding the election, which may be lodged with the Returning Officer within 15 days of declaration of the results of that election, it shall be referred to the State Government for its decision, under Section 37 of the Act which shall be final.

Part III ? Election of the President of the State Council

4.

Register of Members of the State Council.

(1)

The Office of the State Council shall maintain a register in Form VII giving the name and other details of the members elected or nominated to it, from time to time.

(2)

Procedure for election of the President of the State Council. - (a) The election of the President of the State Council by the members of that Council from amongst themselves shall be held at the first meeting of the said Council after its constitution or re-constitution, as the case may be.

(b)

The Registrar shall invite the members present at that meeting to make their nomination for the office of the said President. Each nomination shall be supported by another member present at that meeting as the seconder :

Provided that no member shall nominate or second more than one member for the said Presidentship.

(c)

If there be only one person so nominated, he shall be declared duly elected as the President of the State Council.

(d)

If however, there be more than one member duly nominated and seconded for the said Presidentship, the Registrar shall proceed to take ballots in the following manner, namely :-

(i)

a slip of paper shall be given to every member present who shall write on it the name of the one of the contestants in whose favour the member wishes to cast his vote. He shall then fold the slip and hand it over to the Registrar;

(ii)

on receipt of all the slips, the Registrar shall count the number of votes secured by each contestant and shall declare that member who secures the highest number of votes to be duly elected as the President of the State Council;

(iii)

if there is an equality in the votes secured by two or more contestants thus making it difficult to decide as to who gets the maximum votes, the Registrar may then decide the issue by taking lots in such manner as he deems fit and the person so identified by the draw of the lots shall be declared as duly elected as the President of the State Council.

Part IV ? Procedure for Transaction of Business of the State Council

5.

Time and place of business.

(1)

The business meeting of the State Council shall ordinarily be held once in every three months at such time and place as may be decided by its President:

Provided that the place chosen shall be within the State of Madhya Pradesh.

(2)

The President of the State Council may in the course of a business meeting of the said Council decide the date for its next meeting.

(3)

A Special meeting of the State Council, if deemed necessary, shall be called by the said President on seven days notice

at any time.

(4)

The first meeting of the State Council holding in any financial year shall be the annual meeting of that Council for that year.

(5)

The minutes of every meeting other than a special meeting called under sub-rule (3) shall be despatched by the Registrar by hand or by registered post to every member of the State Council not later than 30 days after the said meeting.

(6)

The items of business on the preliminary agenda of an ordinary quarterly meeting of the State Council shall be intimated to the members by the Registrar, in writing well in advance of the meeting and in any case not less than 30 (thirty) days prior to the date fixed for the meeting.

(7)

In the case of a special meeting, however, the Registrar shall, not less than seven days before the date fixed for that meeting issue along with the notice for the said meeting the items of business on the agenda proposed for that meeting.

(8)

A member who wishes to move any motion not included on the agenda for an ordinary meeting or to move an amendment to any item of agenda so included, shall give notice thereof to the Registrar, in writing, not less than 15 days before the date fixed for the meeting. Thereafter the Registrar shall in consultation with the President of the State Council, accommodate such a request on the final agenda for the meeting.

(9)

The business session. - Every meeting of the State Council shall be presided over by its President when present or, in his absence, by any other member chosen by the members present from amongst themselves to preside over that meeting.

(10)

(a)

The quorum necessary for transaction of business at a meeting of the State Council shall not be less than one-third of the strength of the Council.

(b)

If at the time appointed for a meeting there is no quorum the meeting shall not commence until there is a quorum and if even at the expiry of one hour from the appointed time, there is no quorum the meeting shall stand adjourned to such future date and time in the same quarter as the President of the State Council may appoint.

(11)

All questions which come up before any meeting of the State Council shall be decided by a majority of the members present and voting.

(12)

In the case of an equality of votes, the presiding person shall have a casting vote.

(13)

A copy of the minutes of each meeting of the State Council whether ordinary or special shall be submitted to its President within two days of the meeting and after being attested by him and sent to each member as provided under sub-rule (5).

Part V

6.

Executive and other committee.

(1)

The State Council may under Section 40 of the Act, appoint from among its members an Executive Committee and other committees on the adoption of a motion to this effect for such purposes as it may consider necessary and define the purposes and functions of such committee in the said motion itself.

(2)

The State Council may also co-opt any person specially to advise on any matter to any committee other than Executive Committee, by adopting a motion to this effect.

(3)

The quorum for a meeting of the Executive Committee or other Committee shall be specified at the time of appointment of the concerned Committee(s) and shall not be less than the simple majority of members appointed in this regard.

(4)

The Executive Committee and other committees so appointed shall report to the Registrar of the State Council on the matters referred in the motion(s) appointing the said Committee(s) within the time frame specified for this purpose in the said motion(s).

(5)

Save in exceptional circumstances, no extension of time shall be given to any committee appointed by the State Council under sub-rule (1) read with Section 40 of the Act.

(6)

The Registrar shall place before the State Council the said report of the Committee at the next meeting of that Council.

Part VI

7.

Fees and allowances to President and other members of the State Council and Members of the Committees (other than members of the State Council).

(1)

The President and other members of the State Council other than the State Government officials and ex-officio members shall under Section 41 of the Act, be paid travelling allowances as admissible to Class I Officers of the Government of Madhya Pradesh for attending the meeting of the said Council and Committee(s).

(2)

The members of the Committee other than the members of the State Council shall also be paid likewise travelling allowances for attending the meeting of the committee.

(3)

The State Government officials who are nominated by the Government of Madhya Pradesh and ex-officio members shall however, be entitled for travelling and other allowances as per Government institution rules from their respective offices/organisations.

(4)

As regards the daily allowances for non-official members they shall be paid amounts equivalent to those admissible to Class I officials of the Government of Madhya Pradesh.

(5)

A fee of Rs. 50 (Rupees fifty only) shall be paid to all members other than the President of the State Council and Government officials who are members for attending a meeting of the State Council or the Executive Committee or the other committees.

(6)

For the President of the State Council if he is not a State Government official, an amount of Rs. 100 (Rupees one hundred only) shall be paid for each meeting of the State Council and Rs. 50 (Rupees fifty only) for other meetings.

(7)

Where a member of the State Council other than its President presides over a meeting of the said council under sub-rule 5(9), he shall be paid a fee of Rs. 100 (Rupees one hundred only).

Part VII

8.

Terms and conditions of service of Registrar and other officers and employees.

- The terms and conditions of service of the Registrar and of the other officers and employees appointed by the State Council shall be those applicable to similar State Government officials under the Madhya Pradesh State Service Rules.

Part VIII

9.

State Veterinary Register.

- The State Council, shall as provided for under Section 44 of the Act maintain a State Veterinary register for Madhya Pradesh in Form VIII containing the names and other relevant particulars of the persons possessing the recognised veterinary qualifications and registered with the State Council under the Act.

Part IX

10.

Application for registration and registration fees.

(1)

Every person who holds a recognised veterinary qualification and resides in the State of Madhya Pradesh and who desire his name to be registered with the State Council shall apply to the Registration Tribunal/The Registrar as the case may be, in Form IX duly filled in and signed by himself.

(2)

Every such application shall be accompanied by a registration fees of Rs. 25 (Rupees Twenty five only).

(3)

On the entry of a person's name in the State Veterinary Register, the Registrar shall issue to him a certificate of registration in Form X.

11.

Renewal fee for registration.

(1)

Any person desiring to retain his name in the State Veterinary Register shall pay to the State Council every five years a registration renewal fee of Rs. 15/- (Rupees Fifteen only) before the 1st day of April of the year in which his registration renewal falls due.

(2)

Where the said renewal fee is not paid within the period mentioned in sub-rule (1) of the defaulter's name shall stand removed from the said register and shall be restored to it only after the payment of the said renewal fee with fine which shall be five rupees for every one month or part thereof his default.

12.

Fee for restoration of a name.

- The fee for restoration of a name removed from the State Veterinary Register under Section 49 of the Act shall be twenty five rupees.

13.

Cost of State Veterinary Register.

- The charges leviable from persons applying for a copy of the State Veterinary Register shall be Rs. 10 (Rupees ten only).

14.

Transfer of registration.

(1)

Where a registered veterinary practitioner of one State is practising veterinary medicine in another State, he may apply for the transfer of his name, in Form XI, from the register of the first State where he is registered to the Registrar of the second State where he is practising.

(2)

The application for such transfer shall be accompanied by a fee not exceeding the one prescribed by the concerned second State for renewal of registration with its State Council under Section 49 of the Act.

15.

Issue of duplicate certificate.

(1)

A duplicate certificate of registration or renewal as the case may be shall be issued by the Registrar of the State Council under Section 54 of the Act on payment of a fee of Rs. 10 (Rupees ten only).

(2)

The said duplicate certificate shall be in Form XII.

Form I

[See sub-rules (4) and (5) of Rule 3]

Claim for inclusion of a name in the electoral roll

To

The Registrar

Madhya Pradesh State Veterinary Council,
BHOPAL (M.P.)

Sir,

I do hereby, file, under Rules 3 (4) and 3 (5) of the Madhya Pradesh State Veterinary Council Rules framed under the Indian Veterinary Council Act, 1984 (No. 52 of 1984), my claim for inclusion of my name in the electoral roll for the ensuing election to the Madhya Pradesh State Veterinary Council under clause (a) of sub-section (1) of Section 32 of the said Act. The relevant details are given below :

Name (in block letters)

.....

Address

.....

Academic qualifications

.....

Designation and official address if any

.....

Grounds for the claim (with proof, if any)

.....

I declare that I am citizen of India, residing in Madhya Pradesh State and practising veterinary medicine/employed in Madhya Pradesh State.

Place:

Date :

.....(Signature of claimant)Name:.....Registration No.....

Form II

[See Rules 3 (4) and 3 (5)]

Objection to an entry in the draft electoral roll

To

The Registrar

Madhya Pradesh State Veterinary Council,

BHOPAL (M.P.)

Sir,

I do hereby, file, under Rules 3 (4) and 3 (5) of the Madhya Pradesh State Veterinary Council Rules framed under the Indian Veterinary Council Act, 1984 (No. 52 of 1984), my objection to the entry in the draft electoral roll prepared by you in connection with the ensuring election to the Madhya Pradesh State Veterinary Council under clause (a) of sub-section (1) of Section 32 of the said Act :-

1.

Name of the person (in block letters) the entry of whose name
in the draft electoral roll is objected to

.....

2.

Particulars of entry objected to

.....

3.

Grounds of objection to the entry

.....

Place:

Date :

.....(Signature of Objector)Serial No. and name of objector as entered in the Draft Electoral Roll :

Address of Objector :

Place:

Date :

(Counter Signature)Serial No. and Name of the person countersigning as entered in the Draft electoral roll.

Address of the person countersigning :

Form III

[See Rule 3 (9)]

Nomination Paper

Election to the Madhya Pradesh State Veterinary Council under clause (a) of sub-section (1) of Section 32 of the Indian Veterinary Council Act, 1984 (No. 52 of 1984).

1.

Name of the candidate

.....

2.

Father's Name

.....

3.

Age and date of birth

.....

4.

Nature of Qualification

.....

5.

Registered Number (in the State Veterinary Register)

.....

6.

Page No. in the State Veterinary Register or its supplement
(mentioning the year) in which the name appears

.....

7.

Serial No. in the roll

.....

8.

Address : House No.

.....

Block Street No.

.....

Village/Town

.....

Post Office

.....

Pin Code

.....

9.

Name of the proposer

.....

10.

Signature of the proposer

.....

11.

Registered No of proposer in the State Veterinary Register
and the page No. in the said Register or its supplement
(mentioning the year) in which the name appears

.....

12.

S. No. in the roll

.....

13.

Name of Seconder

.....

14.

Signature of Seconder

.....

15.

Registered No. of Seconder in the State Veterinary Register
and the page No. in the said Register or its supplement
(mentioning the year) in which the name appears

.....

16.

S. No. in the roll

.....

Declaration by the Candidate

I hereby declare that I assent (agree) to this nomination.

.....(Signature of the Candidate)

This nomination paper was received by me at (place) on (date) at (time).....

.....(Signature of Returning Officer)

Instructions

Nomination papers which are not received by the Returning Officer before (hour) on the date will be invalid.

Form IV

[See Rule 3 (14) (b)]

Voting Paper

Serial No. of Voting Paper :.....

..... member(s) is/are to be elected in the Madhya Pradesh State Veterinary Council under the Indian Veterinary
Council Act, 1984 (No. 52 of 1984).

S. No.

Name and Address of candidates duly nominated

Votes

(1)

(2)

(3)

1.2.3.4.6.7.

Initials/facsimile signature of Returning Officer.

Instructions

1. Each elector has the right to vote for as many candidates as the number of members to be elected.

2. He shall vote by placing the mark "X" opposite the name(s) of the candidate(s) whom he prefers.

3. The voting paper shall be invalid if-

(a)

it does not bear the Returning Officer's initials or facsimile signature; or

(b)

the voter signs his name or writes a word or makes any mark on it, by which it becomes recognisable as his voting
paper; or

(c)

No vote is recorded thereon; or

(d)

If the mark, "X" is so placed as to render it doubtful to which candidate it is intended to apply, or if it is placed against the
names of more number of candidates than X required to be elected.

Form V

[See Rule 3 (14) (b)]

Declaration Paper

Election to the Madhya Pradesh State Veterinary Council under Section 32 (1)(a) of Indian Veterinary Council Act, 1984 (No. 52 of 1984).

Elector's name

.....

Number on the State Veterinary Register and page number in that Register or its supplement (mentioning the year) in which the name appears.

.....

Elector's Declaration

I.....(Name in full and Designation, if any) declare that I am an elector for the election of members to the Madhya Pradesh State Veterinary Council of electorate under clause (d) of sub-Section (1) of Section 32 of the Indian Veterinary Council Act, 1984 (No. 52 of 1984) and that I have submitted no other voting paper at this election.

Station :

Date :

.....Signature of Elector.

Form VI

[See Rule 3 (14)(b)]

Sir/Madam,

The person whose names are printed on the enclosed voting paper have been duly nominated as candidates for election to the Madhya Pradesh State Veterinary Council under Section 32 (1)(a) of the Madhya Pradesh State Veterinary Council Act, 1984 (No. 52 of 1984), should you desire to vote at the election, I request that you will-

1. (a) Fill up and sign the declaration paper (Form V);

(b)

Mark your vote in the column provided for the purpose in the voting paper (Form IV) as directed on the voting paper;

(c)

Enclose the voting paper in the smaller cover and stick it up; and

(d)

Enclose the smaller cover and the declaration paper in the outer envelope which is larger and on which my address is already printed and return the same to me by post at your cost or deliver in person in my office so as to reach me not later than on the of 19.....

2. The voting paper will be rejected if,-

(a)

The outer envelope enclosing the voting paper cover and the declaration paper is not sent by post/or not delivered in person in my office or received later than the hour fixed for the closing of the poll; or

(b)

the outer envelope contains no declaration paper outside the smaller cover; or

(c)

the voting paper is placed outside the voting paper cover; or

(d)

the declaration paper is not the one sent by the Returning Officer to the voter; or

(e)

more than one declaration paper or voting paper cover have been enclosed in one and the same outer envelope; or

(f)

the declaration is not signed by the elector; or

(g)

the voting paper is invalid.

3. A voting paper will be invalid; if-

(i)

it does not bear the Returning Officer's initials or facsimile signature; or

(ii)

a voter signs his name on the voting paper or writes any word on it or makes any mark by which it becomes recognisable as his voting paper; or

(iii)

no vote is recorded thereon; or

(iv)

the number of votes recorded thereon exceeds the number to be elected; or

(v)

it is void for uncertainty of the vote exercised.

4. If a voter inadvertently spoils a voting paper, he can return it, not later than 15 days before the date appointed for the poll to the returning officer who will if satisfied of such inadvertence issue to him, another voting paper.

5. The scrutiny and Counting of votes will begin on Date at.....(hour).

6. No person shall be present at the scrutiny and counting except the Returning Officer, such other persons as he may appoint to assist him, the candidates or their duly authorised representatives.

Returning Officer

Form VII

[See Rule 4 (1)]

Register of Members of the Madiya Pradesh State Veterinary Council

S. No.

Name (in block letters) and date of Birth

Address

Whether elected or nominated

Clause under which elected or nominated.

(1)

(2)

(3)

(4)

(5)

1.

2.

3.

4.

No. and date of notification of name in official

Gazette.

Date of commencement of the term of office

Due date of termination of office

Date of and reason for the termination of office

earlier than due date if any

Remarks if any

(6)

(7)

(8)

(9)

(10)

1.

2.

3.

4.

5.

6.

Form VIII

[See Rule 9]

Madhya Pradesh State Veterinary Register maintained under Section 44 of the Indian Veterinary Council Act, 1984 (No. 52 of 1984)

S. No.

Full Name (in block letters) and date of Birth

Nationality

Residential Address

Date of admission in State Veterinary Register

(1)

(2)

(3)

(4)

(5)

Qualification for Registration

Authorised college & University conferring
the qualification

Professional address, if any

Qualification

Year with date of qualification

(1)

(7)

(8)

(9)

Permanent address if any

Other academic qualification if any

Qualification

Institution from which obtained

Year with date

(10)

(11)

(12)

(13)

Present occupation

Retired

Remarks

Government, service

Private practice

(14)

(15)

(16)

(17)

Form IX

[See Rule 10 (1)]

Application for Registration as Registered Veterinary Practitioner under the Indian Veterinary Council Act, 1984 (No. 52 of 1984)

To,

The Secretary, Registration Tribunal Madhya Pradesh BHOPAL,

The Registrar, Madhya Pradesh State Veterinary Council BHOPAL

(MP)

Sir,

I request that my name, address, qualification and other particulars as given hereunder may be registered in the Madhya Pradesh State Veterinary Register to be being maintained by you under the Indian Veterinary Council Act, 1984 (No. 52 of 1984) and that it may be issued with a certificate of such registration in the course.

2. I enclose herewith the originals of my degrees diploma in support of my qualifications for your verification and request that they may be returned to me when done with. I also enclose their attested copies for your record.

3. The prescribed Registration fee of Rupees is also sent herewith through the enclosed Demand Draft/Indian Postal Order bearing No and date and crossed and made payable to you at.....

4. The above referred particulars of mine are as under :-

(a)

Name in full (block letters)

.....

(b)

Place and Date of Birth

.....

(c)

Nationality

.....

(d)

Residential address

.....

(e)

Professional Address

.....

(f)

Permanent Address

.....

(g)

Veterinary Qualification

.....

Qualification

Date and year of passing

Institution or University

(h)

Other academic qualification, if any

(i)

Present occupation-

(a)

Government service

(b)

Private practice

(c)

Retired person

(j)

Any other relevant information.

5. I affirm that all the particulars given above are correct.

Place : Date :

Yours faithfully, (Signature of applicant)

Form X

[See Rule 10 (3)]

Certificate of Registration

Madhya Pradesh State Veterinary Council established under Section 32 of the Indian Veterinary Council Act, 1984 (No.

52 of 1984)

Seal

No.....

Date.....

This is to certify that Dr.....Resident of.....has been duly registered as a Registered Veterinary Practitioner and is entitled to all the privileges granted to such practitioners under the Indian Veterinary Council Act, 1984 (No. 52 of 1984). This registration has been effected with the Madhya Pradesh State Veterinary Council, under the said Act.

In witness whereof are herewith affixed the seal of the State Veterinary Council and the signature of the Registrar of the said State Council.

(SEAL)

.....(Signature of Registrar)

This certificate is the property of the Madhya Pradesh State Veterinary Council established under the Indian Veterinary Council Act, 1984 (No. 52 of 1984) and is issued to the Registered Veterinary Practitioner mentioned above under Rule 10 (3) of the Madhya Pradesh State Veterinary Council Rules, 1993.

Form XI

[See Rule 14 (1)]

Application for transfer of the name of a Registered Veterinary Practitioner from State Veterinary Register of one State to that of another

To,

The Secretary

Veterinary Council of

.....

Sir,

I, Dr.....resident of.....and at present practising veterinary medicine at I am a registered veterinary practitioner having got registered my name and other relevant particulars withState/Veterinary Council under the Indian Veterinary Council Act, 1984 (No. 52 of 1984). My registered number in the said State Veterinary Register is..... and appears on page No.....of that register/its supplement.....(with year).

2. As I am desirous of getting my name and particulars transferred from the register to the State Veterinary Register of where I am currently practising Veterinary Medicine, I request that, necessary directions may be given to the concerned State Veterinary Councils of and to the effect that my name and particulars be removed from State Veterinary Register and entered in.....State Veterinary Register. The prescribed fee of..... Rupees (Equivalent to the renewal fee for registration in the second State of as provided under Section 52 of the Act), is also submitted herewith through the enclosed Demand Draft, Indian Postal Order No dated crossed and made payable to the Registrar of the above second State Council.

Place :

Date :

Yours faithfully,(Signature of applicant)

Name in full :.....

Registered No.....

Form XII

[See Rule 15]

Duplicate Certificate of Registration/Renewal of Registration

Madhya Pradesh State Veterinary Council established under Section 32 of the Indian Veterinary Council Act, 1984 (No. 52 of 1984)

Seal

The duplicate certificate of registration or renewal of registration shall be on the same pattern as the original certificate provided the word DUPLICATE shall be printed in red ink at the top right corner of the said certificate.

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Translation